

Writ against post-checking assessment dismissed for s.127 appeal

High Court of Judicature at Allahabad · Division Bench · 5 April 2012 · Writ-C No. 17087 of 2012 · **Writ dismissed; relegated to s.127 appeal against assessment.**

HEADNOTE

After a checking that found unauthorised use, an FIR under Section 135, and a Supply Code assessment and demand, the High Court dismissed the writ because Section 127 of the Electricity Act, 2003 supplies an appeal against the assessment and demand order.

FACTUAL SUMMARY

Checking on 5 May 2011 found the petitioner unauthorisedly drawing electricity to run a 3 HP motor for a flour mill. An FIR under Section 135 of the Electricity Act, 2003 was lodged and a provisional assessment of Rs. 60,831 was proposed under the U.P. Electricity Supply Code, 2005. He objected that the mill ran on a 10 HP generator and the 3 HP residential motor was used sparingly. The Executive Engineer re-inspected, confirmed the earlier report, and rejected the objections on 28 January 2012. He then filed this writ.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ against assessment barred by s.127 appeal

HOLDING

Where an assessment and demand follow a checking that found unauthorised use and an FIR under Section 135, the consumer's remedy against that assessment and demand is an appeal under Section 127 of the Electricity Act, 2003; a writ petition is dismissed on the ground of that alternative remedy. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy After a checking that found unauthorised use, an FIR under Section 135, and a Supply Code assessment and demand, the High Court dismissed the writ because Section 127 of the Electricity Act, 2003 supplies an appeal against the assessment and demand order. ¶ 1

relegate-to-statutory-remedy After a checking that found unauthorised use, an FIR under Section 135, and a Supply Code assessment and demand, the High Court dismissed the writ because Section 127 of the Electricity Act, 2003 supplies an appeal against the assessment and demand order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNAUTHORISED-USE FINDING AND THE QUANTUM OF ASSESSMENT

Objections that the mill ran on a generator were not decided; the Court noted there were no objections to method or quantum and left the assessment to the s.127 appeal. ¶ 1